Number of responses to rule 34b-1 that disclose fee waivers/expense reimbursement arrangements	x 337 responses	x 337 responses
Total annual burden of requirements for disclosure of fee waivers/expense reimbursement arrangements	1,348 hours	$452,928
Total annual burden	3,370 hours	$1,132,320
TOTAL ESTIMATED BURDENS INCLUDING AMENDMENTS		
Current burden estimates	26,008 hours	$7,300,000
Revised burden estimate	29,378	$8,432,320

Notes:
1. Includes initial burden estimates annualized over a 3-year period.
2. These PRA estimates assume that the same types of professionals would be involved in preparing these notices that we believe otherwise would be involved in preparing a fund's advertisements. The Commission's estimates of the relevant wage rates are based on salary information for the securities industry compiled by the Securities Industry and Financial Markets Association's Office Salaries in the Securities Industry 2013. The estimated figures are modified by firm size, employee benefits, overhead, and adjusted to account for the effects of inflation. See Securities Industry and Financial Markets Association, Report on Management & Professional Earnings in the Securities Industry 2013.
3. This estimate assumes that, after the initial 9 hours that an entity would spend on the proposed fee and expense disclosure, which we annualize over a 3-year period, the entity would incur 3 additional burden hours associated with ongoing compliance with these requirements per year. The estimate of 6 hours is based on the following calculation: ((9 initial hours /3) + 3 hours of additional ongoing burden hours) = 6 hours.
4. This estimate assumes that, after the initial 6 hours that an entity would spend on the proposed fee waiver and expense reimbursement requirements, which we annualized over a 3-year period, the entity would incur 2 additional burden hours associated with ongoing compliance with these requirements per year. The estimate of 4 hours is based on the following calculation ((6 initial hours/ 3) + 2 hours of additional ongoing burden hours) = 4 hours.

H. Rule 433

We are proposing to amend rule 433 to require a registered closed-end fund or BDC free writing prospectus to comply with the proposed content, presentation, and timeliness requirements of proposed rule 482, as applicable, if the free writing prospectus includes fee and expense information.[876] As a result, regardless of whether a registered closed-end fund or BDC advertisement uses rule 482 or rule 433, the advertisement would be subject to the same requirements regarding fee and expense information.[877] Compliance with the requirements of rule 433 is mandatory and the responses to the information collections would not be kept confidential.

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876 *See supra* Section II.I.

877 *See supra* footnote 872 (noting that, for purposes of the PRA for rule 482, we excluded responses from closed-end funds and BDC).

In our most recent Paperwork Reduction Act submission for rule 433, we estimated the annual compliance burden to comply with the collection of information requirement rule 433 is 6,391 hours, at a time cost of $7,668,800, and an external cost burden estimate of $7,669,017.[878] As part of that rulemaking, we also estimated that there will be 791 closed-end funds and BDCs filing approximately 4,271 free writing prospectuses.

We estimate that approximately 96% of the 4,271 responses provide fee and expense figures in free writing prospectuses and would, therefore, be required to comply with the proposed amendments regarding such information. Similarly, we estimate that 96% of these responses would include information regarding a fund's total annual expenses and would, therefore, have to comply with the proposed amendments regarding such information.

The table below summarizes the proposed estimates for internal burdens associated with this new requirement under rule 433:

TABLE 15: RULE 433 PRA ESTIMATES

	Internal initial burden hours[1]	Internal annual hour burden	Wage rate[2]	Internal time costs	External costs
PROPOSED ESTIMATES FOR RULE 433					
New general requirements re: fee and expense figure disclosure	9 hours	6 hours[3]	$336 (blended rate for compliance attorney and senior programmer)	$2,016	
Number of responses to rule 433 that include fee/expense figure disclosure		x 4,100 responses		x 4,100 responses	
Total burden of new requirements for fee and expense disclosure		24,600 hours		$8,265,600	
New requirements for disclosure of fee waivers/expense reimbursement arrangements	6 hours	4 hours[4]	$336 (blended rate for compliance attorney and senior programmer)	$1,344	
Number of responses to rule 433 that disclose fee waivers/expense reimbursement arrangements		x 4,100 responses	-	x 4,100 responses	

878 This estimate is based on the last time the rule's information collection was submitted in 2020. *See* Securities Offering Reform for Closed-End Investment Companies, Investment Company Act Release No. 33836 (Apr. 8, 2020).

Total burden of annual requirements for disclosure of fee waivers/expense reimbursement arrangements	16,400 hours	$5,510,400	
Total annual burden	41,000 hours	$13,776,000	
TOTAL ESTIMATED BURDENS INCLUDING AMENDMENTS			
Current burden estimates	6,391 hours	$7,668,800	$7,669,017
Revised burden estimate	47,391 hours	$21,444,800	$7,669,017

Notes:
1. Includes initial burden estimates annualized over a 3-year period.
2. These PRA estimates assume that the same types of professionals would be involved in preparing these notices that we believe otherwise would be involved in preparing a fund's advertisements. The Commission's estimates of the relevant wage rates are based on salary information for the securities industry compiled by the Securities Industry and Financial Markets Association's *Office Salaries in the Securities Industry 2013*. The estimated figures are modified by firm size, employee benefits, overhead, and adjusted to account for the effects of inflation. *See* Securities Industry and Financial Markets Association, Report on Management & Professional Earnings in the Securities Industry 2013.
3. This estimate assumes that, after the initial 9 hours that an entity would spend on the proposed fee and expense disclosure, which we annualize over a 3-year period, the entity would incur 3 additional burden hours associated with ongoing compliance with these requirements per year. The estimate of 6 hours is based on the following calculation: ((9 initial hours /3) + 3 hours of additional ongoing burden hours) = 6 hours.
4. This estimate assumes that, after the initial 6 hours that an entity would spend on the proposed fee waiver and expense reimbursement requirements, which we annualized over a 3-year period, the entity would incur 2 additional burden hours associated with ongoing compliance with these requirements per year. The estimate of 4 hours is based on the following calculation ((6 initial hours/ 3) + 2 hour of additional ongoing burden hours) = 4 hours.

I. Rule 30e-3

We are proposing to amend the scope of rule 30e-3 to exclude investment companies registered on Form N-1A.[879] Because our proposed amendment would decrease the number of funds that would be able to rely on rule 30e-3, we are updating the PRA analysis for rule 30e-3 to account for any burden decrease that would result from this decrease in respondents. We are not updating the rule 30e-3 PRA analysis in any other respect. Reliance on the rule is voluntary; however, compliance with the rule's conditions is mandatory for funds relying on the rule. Responses to the information collections would not be kept confidential.

Under current PRA estimates for rule 30e-3, we estimated that complying with the information collection requirements of rule 30e-3 would impose an average total annual hour burden of about 8,866 hours and an external cost burden estimate of $76,038 on funds that

[879] *See supra* section II.G.

choose to rely on rule 30e-3. [880] Of those costs, we estimated that 24,459.4 hours, at a time cost of $8,674,306, and an external cost of $69,965,020, were attributed to the compliance costs of open-end funds registered on Form N-1A. The table below summarizes these revisions to the estimated annual responses, burden hours, and burden-hour costs based on the proposed amendment to the scope of rule 30e-3.

TABLE 16: RULE 30E-3 PRA ESTIMATES

	Previously estimated annual internal hour burden[1]	Updated estimated annual internal hour burden	Previously estimated annual internal burden time cost	Updated estimated annual internal time burden cost	Previously estimated annual external cost burden	Updated estimated annual external cost burden
Total annual burden	28,758 hours	3,298.6 hours	$9.8 million	$1,125,694	$79,031,220	$9,066,200

Notes:
1. The estimated burdens and costs in this table are based on an estimate of 11,367 funds relying on rule 30e-3, of which 10,063 are open end investment companies registered on Form N-1A.

J. Rule 498

Rule 498 under the Securities Act permits funds to satisfy their prospectus delivery obligations under the Securities Act by sending or giving investors the fund's summary prospectus and providing the statutory prospectus on a website. Reliance on the rule is voluntary; however, compliance with the rule's conditions is mandatory for funds relying on the rule. Responses to the information collections would not be kept confidential.

We are proposing to amend the scope of rule 30e-3 to exclude investment companies registered on Form N-1A. Because our proposed amendments would decrease the number of funds that would be able to rely on rule 30e-3, we are updating the PRA analysis for rule 498

[880] This estimate is based on the last time the rule's information collection was submitted in connection with the adoption of rule 30e-3 in 2019.

to account for that change. We are not updating the rule 498 PRA analysis in any other respect.

Under current PRA estimates for rule 498, we estimated that complying with the information collection requirements of rule 498 would impose an average total annual hour burden of about 20,327 burden hours, at a time cost of $5.8 million, and an annual external cost burden of $167,458,800. Of those costs, we estimated that the amortized aggregate annual hour burden associated with the rule 30e-3 amendments to rule 498 was 4,529 hours, at a time cost of $1,286,236. We estimated that the external costs of rule 498 did not change as a result of the rule 30e-3 amendments. The table below summarizes our proposed revisions to the estimated burden hours, and burden-hour costs based on the proposed amendment to the scope of rule 30e-3.

TABLE 17: RULE 498 PRA ESTIMATES

	Previously estimated annual internal hour burden[1]	Updated estimated annual internal hour burden[2]	Previously estimated annual internal burden time cost	Updated estimated annual internal time burden cost	Previously estimated annual external cost burden	Updated estimated annual external cost burden
Total annual burden	20,327 hours	15,798 hours	$5.8 million	$4,513,764	$167,458,800	$167,458,800

K. Request for Comment

We request comment on whether these estimates are reasonable. Pursuant to 44 U.S.C. 3506(c)(2)(B), the Commission solicits comments in order to: (1) evaluate whether the proposed collection of information is necessary for the proper performance of the functions of the Commission, including whether the information will have practical utility; (2) evaluate the accuracy of the Commission's estimate of the burden of the proposed collection of information; (3) determine whether there are ways to enhance the quality, utility, and clarity